



Role, Duties & Responsibilities of a Professional Real Estate Agent

Programme: Zimbabwe Real Estate Foundations | Module: Foundations of Real Estate | Study time: 35 min

Lesson Overview

Understand the professional role of an estate agent in Zimbabwe, including client representation, property marketing, prospecting, verification, viewings, negotiation, communication, transaction coordination, record keeping, confidentiality, professional boundaries and the responsibilities that come with handling property transactions.

Key Takeaways

■	Recognize the legal themes that shape Zimbabwe property transactions
■	Identify ownership authority and mandate terms requirements
■	Understand lease agreements, offers, deposits, and rates considerations
■	Recognize transfer processes and client identity record requirements
■	Explain process to clients without providing legal advice
■	Identify risk signals that require escalation to qualified professionals
■	Recognize when sellers cannot prove authority
■	Identify problematic cash-only arrangements without proper records
■	Handle deceased estate transactions appropriately
■	Recognize missing signatures and disputed boundary issues
■	Maintain records of instructions, authority claims, documents reviewed, and referrals
■	Keep HouseLink files audit-ready through proper documentation habits
■	Understand where an agent's role ends and legal professional's role begins
■	Apply compliance checklists and document submission procedures
■	Verify important claims with proper supporting evidence

Learning Objectives

Use this checklist to confirm you can apply this lesson professionally:

Learning objective	Self-check
Recognize the legal themes that shape Zimbabwe property transactions	☐ Confident ☐ Practising ☐ Review
Identify ownership authority and mandate terms requirements	☐ Confident ☐ Practising ☐ Review
Understand lease agreements, offers, deposits, and rates considerations	☐ Confident ☐ Practising ☐ Review
Recognize transfer processes and client identity record requirements	☐ Confident ☐ Practising ☐ Review
Explain process to clients without providing legal advice	☐ Confident ☐ Practising ☐ Review
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Maintain records of instructions, authority claims, documents reviewed, and referrals	☐ Confident ☐ Practising ☐ Review
Keep HouseLink files audit-ready through proper documentation habits	☐ Confident ☐ Practising ☐ Review
Understand where an agent's role ends and legal professional's role begins	☐ Confident ☐ Practising ☐ Review
Apply compliance checklists and document submission procedures	☐ Confident ☐ Practising ☐ Review
Verify important claims with proper supporting evidence	☐ Confident ☐ Practising ☐ Review

Lesson Guide

In-depth notes for Role, Duties & Responsibilities of a Professional Real Estate Agent - study, annotate, and revisit before client meetings.

Role, Duties & Responsibilities of a Professional Real Estate Agent

A professional real estate agent is much more than a person who advertises properties and introduces buyers to sellers.

An estate agent operates at the centre of many property relationships. The agent may communicate with property owners, buyers, tenants, landlords, developers, investors, legal practitioners, valuers, financial institutions and other professionals.

This position creates significant professional responsibilities.

The quality of an agent's work can influence whether a client receives accurate information, whether opportunities are identified, whether negotiations are handled properly and whether problems are identified before they become more serious.

This lesson examines the role of the professional estate agent from the first client contact through to the completion of a transaction and beyond.

1. What Does an Estate Agent Actually Do?

At its simplest level, an estate agent helps facilitate property transactions.

However, professional estate agency involves a wide range of activities.

Depending on the transaction and the applicable legal framework, an agent may be involved in:

Obtaining property instructions. Understanding the owner's objectives. Identifying prospective buyers or tenants. Marketing property. Arranging property viewings. Communicating with interested parties. Facilitating negotiations. Providing relevant information. Coordinating communication between transaction participants. Following up with prospective clients. Maintaining transaction records. Working with other professionals.

The Estate Agents Act [Chapter 27:17] defines activities that can constitute practising as an estate agent for payment or reward, including bringing parties together in connection with the sale of another person's immovable property, negotiating sale terms, acting as an auctioneer in connection with a sale, providing an estimated market value for sale or leasing purposes, and receiving certain property-related monies. The Act also contains specific provisions dealing with who may perform estate-agent work under supervision or within specified exceptions.

This is why an aspiring agent should understand the regulatory framework before beginning professional practice.

2. The Agent's First Responsibility: Understand the Client

A professional transaction begins with understanding the client's objective.

Two property owners may own almost identical houses but have completely different reasons for selling.

One may need to relocate.

Another may be selling an investment property.

Another may need to raise capital.

Another may have inherited the property.

Another may be selling because of a business restructuring.

The agent should therefore avoid treating every client as a standard transaction.

A proper initial consultation should establish:

Why the client is selling or leasing. The client's preferred timing. The client's expectations. The property's known characteristics. The client's preferred communication method. Any known restrictions or concerns. The client's intended outcome. Any relevant information that may affect the transaction.

The better you understand the client's objective, the better you can structure your professional service.

3. Taking a Property Instruction

When an owner wants an agent to market a property, the relationship should be handled professionally.

The agent should understand exactly what they have been instructed to do and what authority they have been given.

Important matters may include:

Identification of the client. Identification of the property. The nature of the instruction. The agreed marketing strategy. The agreed fee or commission arrangements where applicable. The duration of the instruction. Whether the instruction is exclusive or non-exclusive, where applicable. Who has authority to provide instructions. How offers will be communicated. How viewings will be managed. What information may be published.

Do not assume that a verbal conversation automatically gives you unlimited authority to act on behalf of a property owner.

Professional practice requires clarity.

4. Property Information Collection

An agent needs accurate property information before marketing a property effectively.

Depending on the property, this may include:

Location. Property type. Land size. Building size where relevant. Number of bedrooms. Bathrooms. Parking. Utilities. Security features. Access. Condition. Improvements. Known restrictions. Ownership information. Asking price. Rental information where applicable.

However, collecting information is not the same as verifying information.

This distinction is critical.

5. Verification Is Part of Professionalism

Suppose a property owner tells you:

"This property can be subdivided into eight residential stands."

An inexperienced agent may immediately advertise:

"Approved eight-stand development opportunity."

Those statements are not necessarily the same.

The second statement presents a specific fact that may require confirmation.

A professional agent must therefore understand which information has been confirmed and which information is simply an assertion made by a client.

Verification may involve obtaining or checking appropriate documents, consulting relevant professionals or authorities, or clearly communicating that particular information remains subject to confirmation.

Never turn an assumption into a fact simply because it makes a property easier to sell.

6. Property Marketing

Marketing is one of the most visible responsibilities of an agent.

Good marketing should attract the right prospects while presenting the property accurately.

A professional listing should communicate information clearly and avoid misleading claims.

Marketing may involve:

Property photographs. Video. Property portals. Agency websites. Social media. WhatsApp. Email marketing. Database marketing. Signage. Direct prospecting.

The objective is not simply to generate views.

The objective is to generate qualified interest from people who may genuinely be able to proceed with the transaction.

7. Prospecting

Professional agents need a consistent method of finding clients and opportunities.

Prospecting can include:

Existing client referrals. Property owners. Buyer enquiries. Landlords. Developers. Investors. Networking. Digital marketing. Community relationships. Follow-up with previous enquiries.

One of the biggest mistakes new agents make is waiting for clients to find them.

Professional real estate is usually a proactive business.

8. Qualifying Prospects

Not every enquiry represents a genuine transaction opportunity.

A professional agent should learn to qualify prospects respectfully.

For a buyer, relevant questions may include:

What type of property are you looking for? Which locations are suitable? What is your approximate budget? When do you want to purchase? Are you purchasing with cash or finance? What features are essential?

For a tenant, questions may include:

What type of property do you require? What location do you prefer? What is your rental budget? When do you need occupation? What are your key requirements?

Qualification is not about judging people.

It is about understanding whether the property and the prospect are realistically compatible.

9. Conducting Property Viewings

A viewing is a professional interaction, not simply an opportunity to unlock a door.

The agent should prepare before the viewing.

Preparation may include:

Confirming the appointment. Knowing the property's key features. Understanding the client's requirements. Checking access arrangements. Preparing relevant information. Considering security and safety. Allowing sufficient time.

During the viewing, the agent should observe the prospect's reactions and answer questions honestly.

If you do not know the answer to a question, say so.

It is better to say, "I will verify that information and come back to you," than to invent an answer.

10. Negotiation

Negotiation is one of the most important skills in real estate.

A professional agent should understand the difference between facilitating negotiation and making decisions that belong to the client.

The agent may communicate offers and counteroffers, provide relevant information, identify areas of agreement and help parties understand the consequences of different proposals.

However, the agent should not misrepresent an offer, create a false competing offer, or deliberately provide false information simply to push the price higher.

Professional negotiation is based on information, communication and strategy — not deception.

11. Communication

Communication is one of the most underestimated professional skills in estate agency.

Clients want to know what is happening.

Buyers want responses.

Owners want feedback.

Other professionals need accurate information.

Good communication should be:

Clear. Accurate. Timely. Respectful. Professional. Appropriate to the situation.

If there is no update, communicate that there is no update.

Silence can create unnecessary distrust.

12. Confidentiality and Client Information

Agents may receive sensitive information about clients and transactions.

This may include contact details, financial information, property information, personal circumstances, negotiation positions and other confidential information.

Such information should be handled responsibly.

Do not casually share a client's private information with unrelated people.

Do not disclose a client's negotiation position simply because doing so may help you close a transaction.

Always consider whether information should be disclosed, to whom and for what legitimate purpose.

13. Record Keeping

Professional agents should maintain appropriate records.

Important records may include:

Client details. Property information. Instructions. Marketing activity. Viewing records. Offers. Communications. Transaction documents. Follow-up activities. Financial records.

Good record keeping protects both the client and the professional.

It also allows the agent to manage multiple transactions without relying entirely on memory.

14. Handling Offers

Offers should be handled professionally and communicated according to the applicable instructions, agreements, laws and professional requirements.

An agent should not hide an offer simply because it is lower than the owner's expectations.

Nor should an agent misrepresent the existence or value of competing offers.

The agent's role is to facilitate the transaction professionally while respecting the interests and instructions of the relevant parties.

15. Working With Other Professionals

Complex property transactions often require multiple professionals.

An agent should know when to involve or refer to:

Legal practitioners. Valuers. Surveyors. Town planners. Architects. Engineers. Financial institutions. Local authorities. Tax professionals.

Referral does not mean losing control of the transaction.

It means recognising that different professionals have different areas of competence.

16. Financial Responsibility

Money is one of the most sensitive areas of estate agency practice.

Where an estate agent receives or holds money on behalf of another person, specific statutory requirements can apply.

The Estate Agents Act provides for trust accounts and regulates money held by estate agents on behalf of other persons. :contentReference[oaicite:1]{index=1}

This means an agent must never treat client or transaction money as ordinary business cash.

Money-handling requirements should be understood and followed strictly within the applicable regulatory framework.

17. Supervision of Employees and Developing Personnel

Professional responsibility can extend beyond an individual agent.

The Estate Agents Act contains provisions concerning persons employed by registered estate agents and supervision of employees performing estate-agent work. The Act places supervision responsibilities on registered estate agents in specified circumstances. :contentReference[oaicite:2]{index=2}

This becomes particularly important as an agency grows and begins employing negotiators, administrators, marketing personnel or other staff.

Growth increases responsibility.

18. Professional Conduct

The Estate Agents Council identifies professionalism and ethical conduct as central parts of estate agency regulation in Zimbabwe. The Council's stated functions include registration, regulation, enforcement of ethics and standards, and continuous professional development. :contentReference[oaicite:3]{index=3}

Professional conduct therefore should not be treated as an optional extra.

Your conduct affects:

Your clients. Your employer or agency. Your colleagues. Other professionals. The reputation of the industry. Your own future opportunities. 19. The Agent as a Fiduciary-Style Trusted Professional

Clients often place significant trust in property professionals.

Even where a particular legal relationship has specific technical requirements, the practical lesson is important: never abuse the trust placed in you.

Do not exploit a client's lack of knowledge.

Do not manipulate information for personal gain.

Do not secretly pursue a personal interest in a transaction without appropriate disclosure and handling.

Do not use confidential information for an improper purpose.

20. The Agent's Responsibility Does Not End at the Sale

A professional relationship should not be measured only by whether the transaction closes.

Clients remember how they were treated throughout the process.

Professional follow-up may include confirming that the client understands the next steps, maintaining appropriate communication and preserving accurate records.

Past clients can also become a major source of future business and referrals.

21. The Professional Agent's Daily Operating System

A professional agent should develop a daily system.

A productive day may include:

Reviewing active transactions. Following up with buyers. Following up with property owners. Prospecting for new business. Updating property listings. Scheduling viewings. Recording client interactions. Reviewing offers. Coordinating with professionals. Planning the next day's priorities.

The exact system will vary from agent to agent.

The principle remains the same: professional performance should be organised rather than random.

22. The Five Responsibilities to Remember

When you are uncertain about your role in a transaction, return to five questions:

Client: Do I understand what my client needs? Information: Is the information I am communicating accurate?

Process: Do I understand what needs to happen next? Professional boundary: Is this within my competence and authority? Compliance: Am I acting consistently with the applicable legal and professional requirements?

Professional Standard

A professional estate agent does not simply ask, "Can I close this deal?"

A professional asks:

"Can I handle this transaction correctly, ethically, accurately and professionally?"

That difference in mindset is what separates transactional activity from professional estate agency.

As you continue through the Academy, each of these responsibilities will be examined in greater detail.

Know your role. Understand your responsibilities. Protect your reputation. Serve your clients professionally.

Apply in the Field

■	Practise: Recognize the legal themes that shape Zimbabwe property transactions
■	Practise: Identify ownership authority and mandate terms requirements
■	Practise: Understand lease agreements, offers, deposits, and rates considerations

- Practise: Recognize transfer processes and client identity record requirements

Reflection Questions

1. How will you apply “Recognize the legal themes that shape Zimbabwe property transactions” in your next client conversation or property visit?
2. What is one habit you will change this week based on “Role, Duties & Responsibilities of a Professional Real Estate Agent”?
3. Which part of this lesson needs more practice before you move on — and how will you get it?

Professional Tip

The best HouseLink agents translate training into consistent field habits. Read this note, use the linked forms, then practise one action before your next lesson.

Related Field Toolkit

These branded HouseLink forms support this lesson - download them from the Toolkit tab in your course:

- Client Information Sheet

HouseLink Zimbabwe Agent Academy — confidential lesson notes for enrolled learners. Apply this guidance professionally and in line with HouseLink standards.